



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

June 27, 2025

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 20820
(SECOND REVISION)

EXPIRATION DATE: 2029-05-31

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Union Tank Car Company
Chicago, IL
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the inspection and testing of tank car tanks using Alternating Current Field Measurement Technique (ACFMT non-destructive test method) in lieu of the methods in 49 CFR 180.509(e)(4). This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 180.509(e)(4) in that alternative inspection and testing methods are authorized as specified herein.
5. BASIS: This special permit is based on the application of Union Tank Car Company dated June 13, 2025, submitted in accordance with § 107.109.

Tracking Number: 2025064738

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Hazardous materials authorized to be transported in DOT and AAR tank car tanks	As appropriate	As appropriate	As appropriate

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Prescribed packagings are DOT and AAR specification tank car tanks.

b. TESTING:

(1) The Alternating Current Field Measurement Technique (ACFMT) method is authorized for the testing of DOT and AAR specification tank car tanks in accordance with ASME Boiler and Pressure Vessel Code Section V Article 15 2017 Edition.

(2) The ACFMT method must be conducted using the Union Tank Car Company “Structural Integrity Inspection of Tank Car Tanks Using Alternating Current Field Measurement” procedure.

(3) The ACFMT method must be performed by Level II or III personnel qualified and certified in the ACFMT method in accordance with a written company practice for the qualification and certification of nondestructive testing personnel modelled on American Society for Nondestructive Testing SNT-TC-1A 2017 revision.

c. OPERATIONAL CONTROLS:

(1) When using ACFMT for the initial qualification (production) of tank car tanks, Union Tank Car Company must verify the ACFMT method on 100% of the tank car tank welds, and any welded repairs, requiring qualification. For a period of six (6) months from the implementation date of this permit, Union Tank Car Company must perform ACFMT on 5 pressure tank car tanks and two general purpose tank car tanks and verify using the radiographic (RT) method or ultrasonic (UT) method in accordance with AAR M-1002 Appendix R, T, and W.

(2) When using ACFMT for the continued (in-service) qualification of tank car tanks, Union Tank Car Company must verify the ACFMT method on 100% of the tank car tank welds, and weld repairs, requiring qualification. For a period of six (6) months from the implementation date of this permit, Union Tank Car Company must perform ACFMT and the magnetic particle (MT) method on 5% of the total tank car tanks to be inspected in accordance with AAR M-1002 Appendix D, R, T, and W.

(3) Any failure of the ACFMT method to detect defects using MT or to report defects not confirmed using MT, shall be investigated by performing root cause, corrective, and preventative action analyses in accordance with 49 CFR § 179.7 and § 180.509.

(4) Union Tank Car Company shall report the results of the six (6) months of inspections listed in paragraphs 7.c.(1) and (2) using the ACFMT method and all other methods to Office of Hazardous Materials Safety Approvals and Permits Division and the Staff Director - Hazardous Materials, Federal Railroad Administration, within 60 days of the end of six (6) month period described in paragraphs 7.c.(1) and (2). The report must include:

- (i) Car/tank/stub sill mark(s) and number(s);
- (ii) Facility station stencil(s);
- (iii) Facility location(s);
- (iv) Inspection date(s);
- (v) Re-inspection date(s) (if repaired);
- (vi) NDT procedure number(s)/revision level(s);
- (vii) Technician name(s);
- (viii) Technician qualification level(s);
- (ix) Results of all nondestructive tests; and
- (x) TCID weld identifications/defect type(s)/defect location(s)/dimension(s).

d. **MARKING:** Each tank car tank must be marked in accordance with 49 CFR § 172.302(c).

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a packaging covered by this special permit may reoffer it for transportation provided no modification or change is made to the packaging and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the packaging is inspected and tested under the terms of this special permit.

9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.

10. MODAL REQUIREMENTS: The grantee must notify the Federal Railroad Administration of any incident or incidents (e.g., damage while being operated, excessive corrosion, release of product etc.) known to it that occur during the operation of cars authorized under this special permit, which would make the tank not railworthy.

FRA may be contacted at:

Federal Railroad Administration
Hazardous Materials Division
1200 New Jersey Ave. SE
W35-331
Washington, DC 20590
ATTN: Mark Maday, Staff Director 202-493-0479
FAX: 202-493-6478

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)— “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Quade
Acting Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: JN